

4.02.03 - Specific Standards for Location of Accessory Buildings and Structures

- A. For the purposes of this section, in order to determine **yard** requirements, the term "**accessory structure**" shall include detached and attached **accessory use structures** or **buildings** notwithstanding the attachment of such **structure** or **building** containing the **accessory** use to the **principal use structure** or **building**. **Accessory buildings** and **structures** must be constructed simultaneously with or following the construction of the **principal structure** and shall conform with the following **setbacks** and **building** separations.
- B. Accessory buildings shall not occupy an area greater than five (5) percent of the total lot area in all residential zoning districts, or occupy an area greater than forty (40) percent of any building envelope (i.e., area of lot remaining for building purposes after accounting for required setbacks), whichever is the lesser, provided the total maximum coverage provision of this ordinance for all principal and accessory buildings is not exceeded. Nothing herein contained shall serve to prevent the construction of an accessory building containing an area of less than 500 square feet provided all yard and building spacing requirements can be met.
- C. All accessory structures in Rural Agricultural (A) and Estates (E) zoning districts must meet principal structure setbacks. For accessory structures related to the keeping of animals and livestock in these districts, see LDC section 4.02.07.
- D. Table of dimensional standards for accessory buildings and structures in zoning districts other than Rural Agricultural (A) and Estates (E):

Location	Accessory Building/Structure	Setbacks			
		Front	Side	Rear	Structure to Structure (If Detached)

Non-Waterfront Lots and Non-Golf Course Lots	Attached porch	SPS	SPS	10 feet	N/A
	Carports (commercial, industrial, and multi-family) ¹	SPS	SPS	SPS	10 feet
	Carports (one- and two-family)	SPS	SPS	10 feet	10 feet
	Chickee, barbecue areas	SPS	SPS	10 feet	10 feet
	One-story and multi-story parking structures	SPS	SPS	SPS	1/1 ² with a minimum of 10 feet
	Parking garage (one- and two-family)	SPS	SPS	10 feet	10 feet
	Permanent emergency generators ¹	Not permitted in front of building	SPS	10 feet	N/A
	Satellite dish antennas	Not permitted in front of building	SPS	15 Feet	10 feet
	Swimming pool and/or screen enclosure (one- and two-family)	SPS	SPS	10 feet	None
	Swimming pool (multi-family and commercial)	SPS	15 feet	20 feet	None

Tennis courts (one- and two-family)	SPS	SPS	15 Feet	10 feet
Tennis courts (multi-family, and commercial)	SPS	15 feet	20 feet	20 feet
Trellises, arbors, and similar structures that do not exceed the maximum fence height in LDC section <u>5.03.02</u>	None	None	None	None
Trellises, arbors, and similar structures that exceed the maximum fence height in LDC section <u>5.03.02</u>	SPS	SPS	10 feet	None
Unlisted accessory	SPS	SPS	SPS	10 feet
Utility buildings	SPS	SPS	10 feet	10 feet

Waterfront Lots and Golf Course Lots ³	Attached porch where floor or deck of porch are: • In Isles of Capri: Seven feet in height or less above the top of seawall with a maximum of four feet of stem wall exposure • In all other areas: Four feet in height or less above top of seawall or top of bank	SPS	SPS	10 feet	SPS
	Attached porch where floor or deck of porch are: • In Isles of Capri: More than seven feet in height above the top of seawall or with more than four feet of stem wall exposure • In all other areas: More than four feet in height above top of seawall or top of bank	SPS	SPS	20 feet	SPS
	Boat slips and ramps (private)	N/A	7.5 feet	N/A	N/A

	Boathouses and boat shelters (private)	SPS	See LDC sections <u>5.03.06</u> E and F	N/A	10 feet
	Carports (commercial, industrial, and multi-family) ¹	SPS	SPS	SPS	10 feet
	Carports (one- and two-family)	SPS	SPS	SPS	10 feet
	Chickee, barbecue areas	SPS	SPS	10 feet	10 feet
	Davits, hoists, and lifts	N/A	See LDC sections <u>5.03.06</u> E and F	N/A	None
	Docks, decks, and mooring pilings	N/A	See LDC sections <u>5.03.06</u> E and F	N/A	N/A
	Golf clubhouse and maintenance buildings ⁴	50 feet	50 feet	50 feet	N/A
	One-story and multi-story parking structures	SPS	SPS	SPS	1/1 ² with a minimum of 10 feet
	Parking garage (one- and two-family)	SPS	SPS	SPS	10 feet

	Permanent emergency generators ¹	Not permitted in front of building	SPS	10 feet	N/A
	Satellite dish antennas	Not permitted in front of building	SPS	15 Feet	10 feet
	Swimming pool and/or screen enclosure (one- and two-family) where swimming pool decks are: • In Isles of Capri: Seven feet in height or less above the top of seawall with a maximum of four feet of stem wall exposure • In all other areas: Four feet in height or less above top of seawall or top of bank	SPS	SPS	10 feet	None

	Swimming pool and/or screen enclosure (one- and two-family) where swimming pool decks are: • In Isles of Capri: More than seven feet in height above the top of seawall or with more than four feet of stem wall exposure • In all other areas: More than four feet in height above top of seawall or top of bank	SPS	SPS	20 Feet	None
	Swimming pool (multi-family and commercial)	SPS	15 feet	20 feet	None
	Tennis courts (private) (one- and two-family)	SPS	SPS	15 feet	10 feet
	Tennis courts (multi-family and commercial)	SPS	SPS	35 feet	20 feet
	Trellises, arbors, and similar structures that do not exceed the maximum fence height in LDC section <u>5.03.02</u>	None	None	None	None

	Trellises, arbors, and similar structures that exceed the maximum fence height in LDC section <u>5.03.02</u>	SPS	SPS	10 feet	None
	Unlisted accessory	SPS	SPS	SPS	10 feet
	Utility buildings	SPS	10 feet	SPS	10 feet

Notes:

SPS = Calculated same as principal structure for the zoning district.

¹ See LDC section 4.02.01 D for exemptions and exclusions from required yards.

² 1 foot of accessory height = 1 foot of building separation.

³ In those cases where the coastal construction control line is involved, the coastal construction control line will apply.

⁴ The setback shall apply to external boundaries of the golf course district, and shall be inclusive of separately platted buffer tracts.

(Ord. No. 06-07, § 3.F; Ord. No. 07-67, § 3.J; Ord. No. 08-63, § 3.J; Ord. No. 14-33, § 3.J; Ord. No. 15-45, § 2.B; Ord. No. 18-18, § 3.H; Ord. No. 22-04, § 3.D)